

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAVID WONG,

Petitioner

VS.

XIAOYAN MA,

Respondent

) Case Number: FDI-23-797598

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner David Wong (Father) and Respondent Xiaoyan Ma (Mother). The parties married on 3/3/2010. The parties disagree regarding their date of separation, but they agree their marriage lasted at least 12 years. The parties have one minor child, Jordan (DOB: 8/5/2011, age 14). Father is represented by attorney Frank Kim. Mother is represented by attorney Don Emley in limited scope.
- 2) On 11/8/2024, the Court issued a 2-Year Restraining Order After Hearing protecting Father against Mother. The restraining order is set to expire on 11/8/2026.
- 3) On 12/8/2025, following a trial before Judge Wiley which occurred on 4/9/2025, 4/17/2025, 6/11/2025, 7/8/2025, and 7/11/2025, Judge Wiley issued a Final Statement of Decision. Judge Wiley found that in February 2023, after the Petition for Dissolution and been filed and served, Mother transferred various life insurance policies to her adult daughter Shiyi Yang in violation of the ATROs. Judge Wiley found these unilateral transfers to be void. The Statement of Decision provides in pertinent part:

- a. Mother shall pay Father \$74,417.32, which constitutes half of the community property interest in the various identified life insurance policies or transfer to Father life insurance policies with an equivalent cash value or a combination of money and policies within 60 days of the date of the Final Statement of Decision.
- b. Following the equalization payment, the Court awards the life insurance policies insuring Father and Jordan to Father. Those policies, and the monthly premiums, will be transferred to Father as the owner of those policies. Those policy numbers are #8573 (insured party is Father), #8890 (insured party is Father), and #7087 (insured party is Jordan).
- c. Mother shall pay Father \$7,500 for prevailing party attorney's fees incurred pursuant to Family Code section 6344 and \$608 in costs within 45 days of the Final Statement of Decision.
- d. Father shall pay Mother \$20,000 in Family Code section 2030 attorney's fees within 45 days of the date of the Final Statement of Decision.

4) On 12/12/2025, Mother filed a Notice of Appeal of the 12/8/2025 Statement of Decision.

5) On 12/15/2025, a Court of Appeal Clerk filed a Notice of Filing of Notice of Appeal.

6) On 12/17/2025, Mother filed an Appellant's Notice Designating Record on Appeal.

7) On 12/17/2025, Mother filed a Request for Order. Mother states she does not have sufficient funds, assets, or access to credit to make the payments ordered within the Statement of Decision and she has no present ability to obtain such funds. Mother also states, "Although one item is currently titled in my name, I am presently unable to comply with the ownership or transfer provisions of the Final Statement of Decision because I lack unilateral legal authority and the practical ability to complete any transfer while the appeal is pending." Mother states, "Without a stay of enforcement, I face the risk of enforcement actions or sanctions despite my present inability to comply and the pendency of the appeal." Mother asks the Court to:

- a. Stay enforcement of the 12/8/2025 Final Statement of Decision pending appeal;
- b. Determine Mother's inability (not refusal) to comply;
- c. Clarify the stay covers insurance equalization, attorney's fees, and ownership / transfer obligations; and

- 1 d. Bar enforcement or sanctions as to those provisions during the appeal.
- 2 8) Within the Findings and Order After Hearing filed 4/17/2026, the Court adjudicated Mother's
- 3 12/17/2025 Request for Order and made the following findings and orders:
- 4 a. The Court finds that the provision requiring Mother to pay Father \$74,417.32 in cash "or
- 5 transfer to Father life insurance policies with an equivalent cash value or a combination
- 6 of money and policies" is a money judgment under Code of Civil Procedure section
- 7 680.270 and that Code of Civil Procedure section 917.1(a) applies to Mother's request for
- 8 a stay of enforcement of this provision.
- 9 b. Mother's request that the Court make a finding that Mother has an inability to comply
- 10 with the identified portions of the Judgment is denied. The Court does not find that
- 11 Mother has an inability to comply with the identified portions of the Judgment.
- 12 c. No later than Friday, 4/24/2026 at 5:00 PM Mother shall provide to the Department 404
- 13 Department Clerk a cashier's check in the amount of \$62,525.32 for an undertaking.
- 14 d. The Court will set a review hearing of Thursday, 5/28/2026 at 9:00 AM in Dept. 404 to
- 15 review Mother's compliance with this order and to determine whether to grant Mother's
- 16 request for a stay.
- 17 9) On 4/24/2026, Mother filed a Declaration stating she is unable to comply with the Court's order
- 18 requiring an undertaking because she lacks access to sufficient liquid funds.
- 19 10) On 5/12/2026, the Court denied an ex parte Request for Order filed by Mother that same day
- 20 requesting that the Court reduce or permit partial and or installments on the undertaking pending
- 21 appeal.
- 22 11) On 5/13/2026, Mother filed a Declaration asking the Court to "consider preservation of the
- 23 existing status and structure of the life insurance policies pending appellate review and the
- 24 practical effect that transfer, surrender, withdrawal, depletion, or other material alteration of the
- 25 policies may have on meaningful appellate review before those appellate issues are resolved."
- 26 12) On 5/18/2026, Father filed a Declaration arguing that a stay is not justified in this matter and that
- 27 Mother has no legal ground for winning her appeal. Father asks the Court to enforce Judge
- 28 Wiley's Final Statement of Decision and transfer the following life insurance policies into his
- 29 name: Transamerica life insurance policies #8573 (with a cash surrender value of \$83,974.77),

1 #8890 (with a cash surrender value of \$65,792.84), and #7087 (with a cash surrender value of
2 \$6,381.64). However, it appears Father is not asking for the full cash surrender value of these
3 policies to be transferred to Father, but rather \$30,000 from policy #8573, \$30,000 from policy
4 #8890, and \$2,525.32 from policy #7087, for total cash value of \$62,525.32 which is the net
5 amount Mother owes Father.

6 13) On 5/19/2026, Mother filed a Declaration. Mother states that the insurance policies at issue were
7 originally funded using money connected to property sale proceeds from China involving her
8 adult daughter Shiyi Yang. Mother states that because the policies were funded using money
9 connected to Shiyi Yang, Shiyi Yang's interests are implicated in Father's requests that policies
10 be transferred to him. Mother states that Shiyi Yang is the owner of policies #8890 and #7087.
11 Mother states the policies should not be accessed, withdrawn against, surrendered, depleted,
12 transferred, or otherwise materially altered before completion of the appeal. Mother states,
13 "Preservation of the existing condition and structure of the policies is necessary to maintain the
14 status quo while the appellate issues concerning ownership, transfer, valuation, equalization, and
15 third-party interests remain unresolved."

16 14) On 5/21/2026, Father filed a Declaration stating that Judge Wiley already determined that the
17 home in China whose proceeds were used to purchase the life insurance policies belonged to
18 Mother and not her daughter Shiyi Yang. Judge Wiley also determined that transfer of ownership
19 of the life insurance policies to Shiyi Yang only occurred after Mother filed for Dissolution of
20 Marriage, and that transfer is void because it is in violation of the ATROs. Father reiterates his
21 request that the identified policies be transferred to him.

22 15) On 5/22/2026, Mother filed a Reply Declaration reiterating her request that the Court deny
23 Father's requests, preserve the disputed policies, and maintain the status quo pending appellate
24 review.

25 16) At the prior 5/28/2026 hearing (per the Findings and Order After Hearing filed 6/8/2026), the
26 Court adopted its Tentative Ruling without objection and ordered the following:

- 27 a. On the Court's own motion, the Court hereby joins Shiyi Yang as a party to this
28 proceeding under California Rules of Court, rule 5.24(e)(2). The Court will issue a
29 Summons (Joinder), which will be mailed to both parties. No later than 6/15/2026,

1 Mother must: have Ms. Yang served with a copy of the Summons as well as a copy of the
2 Findings and Order After Hearing for the 5/28/2026 hearing date using a service method
3 set forth in California Rules of Court, rule 5.68 and (b) file a Proof of Service of
4 Summons (POS-010) showing compliance with this order and serve a copy of the POS-
5 010 on Father's attorney.

6 b. Ms. Yang is precluded from transferring ownership of or making any changes to
7 TransAmerica life insurance policies ending in #8573, #8890, and #7087. Ms. Yang is
8 also precluded from borrowing against, withdrawing, or transferring any of the cash
9 surrender values of these plans. In other words, TransAmerica life insurance policies
10 ending in #8573, #8890, and #7087 are hereby frozen.

11 c. As soon as possible, Father shall have a copy of the Findings and Order After Hearing for
12 the 5/28/2026 hearing date served on the appropriate TransAmerica representative to
13 inform TransAmerica of this order and he shall also file and serve a Proof of Service
14 evidencing service of this order.

15 d. A review hearing was set for Thursday, 7/9/2026 to review the parties' compliance with
16 the above orders and to determine whether to grant Mother's request for a stay.

17 17) Due to the Court's oversight, the Summons (Joinder) was not issued until 6/23/2026.

18 18) On 6/29/2026, Father filed an Update Declaration. Father states his attorney emailed a copy of the
19 Summons (Joinder) to Ms. Yang. Father also states that TransAmerica told his attorney that it
20 cannot "follow the court order" because "the request must come from the owner of each life
21 insurance policy." Father's attorney asked Mother and Ms. Yang to "submit a freeze on any type
22 of transactions of their respective TransAmerica accounts since Petitioner is not allowed to."
23 Father states he is unaware if anything has been submitted to TransAmerica by Mother or Ms.
24 Yang. Father asks the Court to deny Mother's motion to stay.

25 19) On 6/29/2026, Mother filed a Declaration stating the appeal remains pending. Mother states,
26 "preservation of the current status of the disputed life insurance policies remains necessary
27 pending completion of appellate review."

28 20) On 7/6/2026, Mother filed another Declaration stating she was unaware the Summons (Joinder)
29 had been issued until 6/29/2026. Mother states she personally handed the documents to Ms. Yang

1 on 6/29/2026. Mother states she later learned she is not permitted to personally serve the
2 Summons on Ms. Yang, and so Mother had a third party mail the documents to Ms. Yang.
3 Mother then subsequently realized that service by mail requires a signed Notice and
4 Acknowledgment of Receipt, and so on 7/3/2026, Mother had a third party mail the Summons
5 (Joinder), Findings and Order After Hearing, Notice and Acknowledgment of Receipt, and a
6 postage-paid return envelope to Ms. Yang. However, as of 7/3/2026, she has not received a
7 signed Notice and Acknowledgment of Receipt from Ms. Yang and so she has not filed a Proof of
8 Service as required by the Court's prior order. Mother also states that she tried contacting the
9 ACCESS Center for assistance but they did not respond to her inquiries.

10 21) On 7/8/2026, the Court issued a Tentative Ruling which stated in part:

- 11 a. The hearing on Mother's request for a stay shall be continued to 7/30/2026.
- 12 b. Mother shall continue attempts to serve the Findings and Order After Hearing (filed
13 6/8/2026) as well as the Summons on Ms. Yang.
- 14 c. In advance of the next hearing date, Mother and / or Ms. Yang, to the extent either is the
15 owner of TransAmerica life insurance policies ending in #8573, #8890, and #7087, shall
16 execute and transmit to TransAmerica a Letter of Instructions directing TransAmerica to
17 place an immediate freeze on those policies, prohibiting any transfer of ownership,
18 withdrawal, loan, or any other transaction affecting the policies or their cash surrender
19 values without further order of this Court. Mother and Ms. Yang shall thereafter serve on
20 Father's attorney a copy of the Letter of Instructions as well as proof of transmission of
21 the Letter of Instructions to TransAmerica.
- 22 d. At least 10 calendar days prior to the next hearing date, the parties shall file and serve
23 update declarations (not to exceed 5 pages in length, not including exhibits).

24 22) At the prior 7/9/2026 hearing, Mother appeared in pro per and Father appeared with his attorney
25 Frank Kim. At the hearing, Father's attorney stated that Mother and Shiyi Yang live together. The
26 Court adopted its Tentative Ruling.

27 23) On 7/20/2026, Mother filed a Proof of Service of Summons which indicates that the Summons
28 and Findings and Order After Hearing (filed 6/8/2026) were personally served on Ms. Yang on
29 7/16/2026.

1 24) On 7/20/2026, Mother filed an Update Declaration stating: "At the July 9 hearing, the Court
2 orally ordered me to serve the Summons (Joinder) on Shiyi Yang but did not orally order either
3 me or Shiyi Yang to execute or transmit the proposed Letter of Instructions." The Court notes that
4 the latter portion of this statement is incorrect as the Court adopted its Tentative Ruling at the
5 prior hearing.

6 25) Mother further states, "As of the date of this declaration, I have not received a signed and filed
7 Findings and Order After Hearing, a minute order, or any other written order following that
8 hearing. On July 17, 2026, I emailed Department 404, with Petitioner's counsel copied, to request
9 procedural guidance and received only an automated acknowledgment... Because no July 9
10 written order has been provided to me, I have been unable to serve that order on Shiyi Yang... I
11 respectfully request that the Court grant a stay preserving the present ownership, structure, and
12 value of the disputed life insurance policies pending resolution of the appeal, including a stay of
13 enforcement of any provision that would transfer ownership to Petitioner or permit any
14 withdrawal, loan, surrender, depletion, access to cash value, or other material alteration of the
15 policies. I further request that the Court not condition its determination of my stay request on the
16 proposed Letter of Instructions, for which no factual need has been shown, or on separate conduct
17 by Shiyi Yang that I do not control."

18 26) On 7/21/2026, Father filed an Update Declaration. Father states he is unaware if anything has
19 been submitted to TransAmerica by Mother or Ms. Yang. Father states that Mother has requested
20 multiple extensions to file her opening brief with the Court of Appeal (from 5/18/2026, to
21 6/29/2026, to 7/17/2026, and finally to 8/12/2026), and the Court of Appeal has stated it will no
22 longer contemplate any further extension requests by Mother. Father requests that TransAmerica
23 life insurance policies #8573 (owned by Mother; Father is the insured party; available cash
24 surrender value of \$83,974.77), #8890 (owned by Ms. Yang; Father is the insured party; available
25 cash surrender value of \$65,792.84), and #7087 (owned by Ms. Yang; the parties' daughter is the
26 insured party; available cash surrender value of \$6,381.64) be transferred to Father as owner of
27 the policies. Father states he is in daily fear that if anything were to happen to him, neither Father
28 nor their daughter would be taken care of from the life insurance policies. In the alternative,
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1 Father asks that the net total owed to him under Judge Wiley's order be transferred to him for
2 policy #8573. Father also asks the Court to deny Mother's request for a stay.

3 27) On 7/22/2026, the Court issued (and mailed to Mother and Father's attorney) the Findings and
4 Order After Hearing for the 7/9/2026 hearing date.

5 28) On 7/23/2026, Mother filed a Reply Declaration stating she is not in receipt of the order from the
6 7/9/2026 hearing date. Mother states, "Petitioner's July 20 declaration identifies me as owner of
7 policy 8573 and Shiyi Yang as owner of policies 8890 and 7087. Transferring any of these
8 policies to a different owner would change their ownership. Any withdrawal from or other use of
9 policy value to satisfy \$62,525.32 would also change the value of the affected policy. Either
10 action would materially alter the disputed policy or policies before the Court of Appeal reviews
11 the challenged adjudications."

12 29) At the prior 7/30/2026 hearing (per the Findings and Order After Hearing filed 8/12/2026), the
13 Court made the following findings and orders:

- 14 a. The Court finds that service of the Summons and order joining Shiyi Yang as a party to
15 this proceeding has been completed.
 - 16 b. No later than Friday, 8/7/2026, Mother shall execute and transmit to TransAmerica a
17 Letter of Instructions directing TransAmerica to place an immediate freeze on
18 TransAmerica life insurance policy ending in #8573, prohibiting any transfer of
19 ownership, withdrawal, loan, or any other transaction affecting the policies or their cash
20 surrender values without further order of this Court.
 - 21 c. No later than Friday, 8/7/2026, Shiyi Yang shall execute and transmit to TransAmerica a
22 Letter of Instructions directing TransAmerica to place an immediate freeze on
23 TransAmerica life insurance policies ending in #8890 and #7087, prohibiting any transfer
24 of ownership, withdrawal, loan, or any other transaction affecting the policies or their
25 cash surrender values without further order of this Court.
 - 26 d. No later than Monday, 8/10/2026, Mother and Ms. Yang shall serve on Father's attorney
27 a copy of the Letter of Instructions as well as proof of transmission of the Letter of
28 Instructions to TransAmerica.
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1 30) On 8/10/2026, attorney Don Emley filed a Substitution of Attorney substituting in as Mother's
2 attorney of record "in Limited Scope." The Substitution of Attorney does not specify the scope of
3 Mr. Emley's substitution.

4 31) On 8/17/2026, Mother filed a Declaration. Attached to Mother's declaration is a copy of an email
5 sent by Mother to elifecustomersupport@aegonusa.com on 8/5/2026 wherein Mother identifies
6 herself as the owner of policy #8573 and requests a freeze prohibiting any transfer of ownership,
7 withdrawal, loan, or other transaction affecting the policy. Also attached to Mother's declaration
8 is a copy of an email sent by Shiyi Yang to the same Transamerica email address containing the
9 same information regarding policies #8890 and #7087. Mother states she has not initiated,
10 authorized, or attempted any transfer of ownership, beneficiary change, withdrawal, loan,
11 surrender, or other transaction affecting policies #8573, #8890, and #7087, and her appeal of the
12 12/8/2025 Statement of Decision remains pending. Mother requests that the Court (1) find that
13 the freeze-instruction transmission and service requirements have been completed; (2) continue
14 the existing freeze on policies 8573, 8890, and 7087; and (3) grant my pending request for a stay
15 pending appeal of enforcement of the portions of the December 8, 2025 Final Statement of
16 Decision concerning the disputed policies, including any enforcement that would transfer
17 ownership of policies 8573, 8890, or 7087, or satisfy the equalization requirement through any
18 withdrawal from, use of, or other reduction of policy value.

19 32) On 8/19/2026, Father filed a Declaration. Father states that after granting multiple extensions for
20 Mother to file her opening brief, the Court of Appeal notified both parties on 8/13/2026 that
21 Mother failed to file her opening brief on the due date of 8/12/2026 and the appeal will be
22 dismissed if she does not file her opening brief by 8/28/2026. Father requests that TransAmerica
23 life insurance policies #8573 (owner – Xiaoyan Ma, insured party – David Wong), #8890 (owner
24 – Shiyi Yang, insured party – David Wong) and #7087 (owner – Shiyi Yang, insured party –
25 Jordan Wong) be transferred to Father as owner of the policies. Father states, "There is no reason
26 for Respondent to be the owners of those policies as Petitioner and Jordan are the insured parties
27 and if anything unfortunate were to happen to Petitioner, Petitioner needs to be sure that Jordan
28 will be taken care of by the policies. This was the main reason why the life insurance policies
29 were purchased for in the first place. Also, for policy 015068890 (owner – Shiyi Yang, insured

1 party – David Wong), there is a Long Term Care Rider on the policy which means if the insured
2 party becomes incapacitated for any reason, the insured party can use up to 50% of the policy
3 prior to death to use for medical purposes.” Father states he is “in daily fear that if anything were
4 to happen to him, Petitioner nor Jordan would not be taken care of from the life insurance
5 policies.” Father states he “does not believe that Respondent’s appeal will win her case in the
6 Appellate Court as she has not provided any evidence to have the Honorable Judge Wiley’s
7 decision overturned.”

8 **B. Findings and Order**

- 9 1) Code of Civil Procedure section 917.1(a)(1) states: “(a) Unless an undertaking is given, the
10 perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the
11 judgment or order is for any of the following: (1) Money or the payment of money, whether
12 consisting of a special fund or not, and whether payable by the appellant or another party to the
13 action.”
- 14 2) The Court finds that the freezing of life insurance policies #8573, #8890, and #7087 satisfies the
15 undertaking requirement in Code of Civil Procedure section 917.1(a)(1), and that Mother and Ms.
16 Yang have taken the Court-ordered steps to freeze those policies. These policies shall remain
17 frozen pending the appeal. Until the Court specifically orders otherwise, Mother and Ms. Yang
18 are precluded from transferring ownership of, making any changes to, borrowing against,
19 withdrawing from, or transferring any cash surrender value of TransAmerica life insurance
20 policies ending in #8573, #8890, and #7087.
- 21 3) The Court finds good cause to stay enforcement of the following orders set forth in the 12/8/2025
22 Final Statement of Decision pending appeal:
 - 23 a. “Respondent shall pay to Petitioner the sum of \$74,417.32 which constitutes half of the
24 community property interest in the policies or transfer to Petitioner life insurance policies
25 with an equivalent cash value or a combination of money and policies.”
 - 26 b. “Following the equalization payment, the Court awards the life insurance policies
27 insuring Petitioner and Jordan Wong to the Petitioner. Those policies, and the monthly
28 premiums, will be transferred to Petitioner as the owner of those policies. Those policy
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1 numbers are 15068573 (Insured party is David Wong), 15068890 (Insured party is David
2 Wong), and 15257087 (Insured party is Jordan Wong).”

3 c. “Respondent shall pay Petitioner \$7,500 for prevailing party attorney’s fees incurred
4 pursuant to Family Code section 6344, and \$608 in costs within 45 days of the Final
5 Statement of Decision.”

6 d. “Petitioner shall pay Respondent \$20,000 in 2030 attorney’s fees within 45 days of the
7 date of the Final Statement of Decision.”

8 4) The Court will prepare the Findings and Order After Hearing.
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